

Gyanwati v. State of U.P.

Allahabad High Court · Division Bench · 10 April 2024 · 2024:AHC:63576-DB · WRIT - C No. - 11825 of 2024 · **Writ disposed; EE to consider theft-assessment objection under Supply Code**

HEADNOTE

A writ seeking a direction to decide an objection to a theft-based provisional assessment is disposed of on the licensee's statement that the Executive Engineer will consider the objection before the final assessment, with a direction that the U.P. Electricity Supply Code, 2005 procedure be strictly followed.

FACTUAL SUMMARY

Gyanwati was issued a notice of provisional assessment by the Electricity Department in a case of alleged theft of electricity. She filed an application dated 22 December 2023 objecting to that notice and then approached the Allahabad High Court in Writ-C No. 11825 of 2024, praying for a direction to respondent no. 2 to decide the objection. The Department appeared through counsel. The writ was listed before a Division Bench of Manoj Kumar Gupta and Kshitij Shailendra, JJ. on 10 April 2024.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

provisional assessment — theft — objection before final order

HOLDING

On the licensee's statement that the Executive Engineer would consider the consumer's objection to a theft-based provisional assessment before passing the final assessment order, the writ was disposed of with a direction that the procedure prescribed under the U.P. Electricity Supply Code, 2005 shall be strictly followed while considering the objection. ¶ 2-3

PRINCIPLE TAGS

relegate-to-statutory-remedy

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¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ALLEGED THEFT AND OF THE PROVISIONAL ASSESSMENT OR OBJECTION

The Court did not examine the assessment or the objection; it recorded the Department's statement and directed Supply Code procedure. ¶ 2-3